Republic of the Philippines
Office of the President
NATIONAL COMMISSION ON INDIGENOUS PEOPLES
6th & 7th Floors Sunnymede IT Center, 1614 Quezon Avenue, South Triangle, Quezon City
Website: www.ncip.gov.ph

COMMISSION EN BANC RESOLUTION NO. 08 - 027 - 2021
Series of 2021

A RESOLUTION APPROVING THE REVISED PROCESS FLOW FOR THE ISSUANCE OF CERTIFICATES OF NON-OVERLAP AND CERTIFICATIONS PRECONDITION FOR POWER GENERATION PROJECTS PURSUANT TO THE ENERGY VIRTUAL ONE STOP SHOP (EVOSS) LAW

WHEREAS, Republic Act No. 11234 (s.2018), "An Act Establishing the Energy Virtual One-Stop Shop for the Purpose of Streamlining the Permitting Process of Power Generation, Transmission, and Distribution Projects", otherwise known as the **Energy Virtual One-Stop Shop (EVOSS) Act,** and its Implementing Rules and Regulations embodied in the Department of Energy (DOE) Department Circular No. DC2019 05-0007, which took effect on May 28, 2020, requires concerned government agencies with processes relevant to energy projects to simplify its internal processes flow by issuing an Internal Order or Circular streamlining its internal permitting processes.

WHEREAS, Resolution No. 08-052-2020, *"A Resolution Approving and Adopting the Field-Based Investigation (FBI) and Free and Prior Informed Consent (FPIC) Processes Flow Specifically Applicable for the Issuance of Certification Precondition (CP) for Energy Development Projects in Compliance with the Energy Virtual One-Stop Shop Act"*, was duly approved and adopted by the CEB on 19 November 2020 in deference to the President's Administrative Order No. 23 (s.2020) entitled *"Eliminating Overregulation to Promote Efficiency of Government Processes"* reiterating explicitly the processing timelines articulated in the EVOSS Act.

WHEREAS, after a series of consultation processes with the Regional Officers and Staff, together with the Department of Energy conducted on April 20 and 22, 2021, the revised process flow for issuances of Certificate of Non-Overlap and Certification Precondition for energy development projects was agreed upon.

WHEREAS, in the aforementioned CEB Resolution, there were two (2) approved process flow; one for the issuance of CNO and one for CP. Moreover, the 105-processing time were not appropriately allocated per activity, thus there is a need to revise the approved process flow consolidating into one process flow and allocating appropriately the 105-days per activity as recommended and validated during the consultation activities with the Regional Offices.

WHEREAS, on 29 June 2021 during the CEB's regular session, the revised process flow for issuances of Certificate of Non-Overlap and Certification Precondition was presented for deliberation by the CEB. The contents of the process flow were carefully deliberated upon.

NOW, THEREFORE, on motion duly seconded, be it RESOLVED, as it is hereby **RESOLVED**, to adopt, confirm, and approve the revised process flow for issuances of Certificate of Non-Overlap (CNO) and Certification Precondition (CP) specifically applicable to energy development projects, in accordance with the technical discussions with the Department of Energy and the NCIP's Regional Officers and Staff.

RESOLVED, FURTHER, that a copy of the subject process flow be attached to this Resolution as Annex "A" and made an integral part hereof.

RESOLVED, FURTHERMORE, that this Resolution revokes CEB Resolution 08-052-2020.

RESOLVED, FINALLY, that a copy of this Resolution be furnished the DOE-EVOSS Secretariat for information and guidance.

APPROVED and ADOPTED this 29th day of June 2021, at Quezon City, Philippines.

GASPAR A. CAYAT
Commissioner for Cordillera and Region 1

NORBERTO M. NAVARRO
Commissioner for Region II

ROLANDO M. RIVERA
Commissioner for Region III and Rest of Luzon

JEORGE M. LARGADO
Commissioner for Island Group and Rest of the Visayas

PINKY GRACE P. PAREJA
Commissioner for Northern and Western Mindanao

JENNIFER PIA S. LAS
Commissioner for Central Mindanao

ALLEN A. CAPUYAN
Chairperson
Commissioner, Southern & Eastern Mindanao

ATTESTATION

I attest that this Resolution was approved by the Commission en banc during its regular session on the date above-stated.

ROGELIO FRANCISCO M. BANTAYAN, JR
Executive Director and Head Secretariat

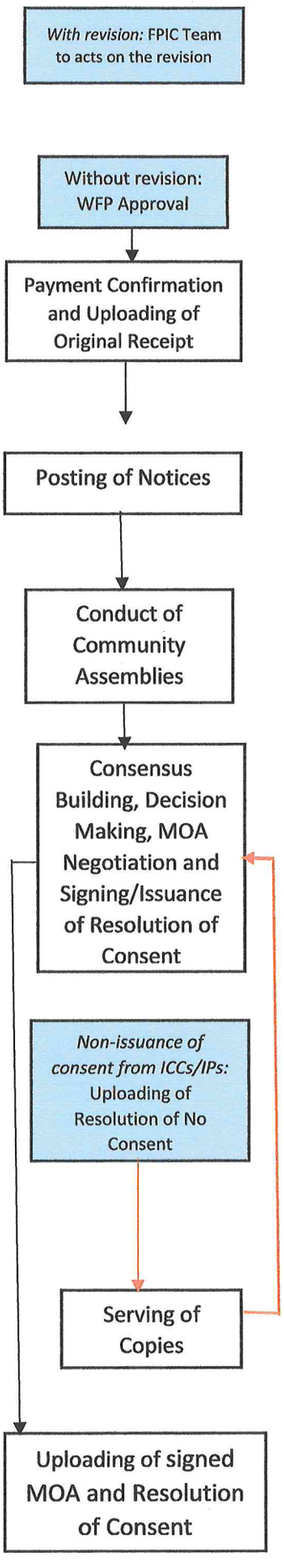
FPIC PROCESS FLOW

FOR POWER GENERATION PROJECTS PURSUANT TO RA 11234

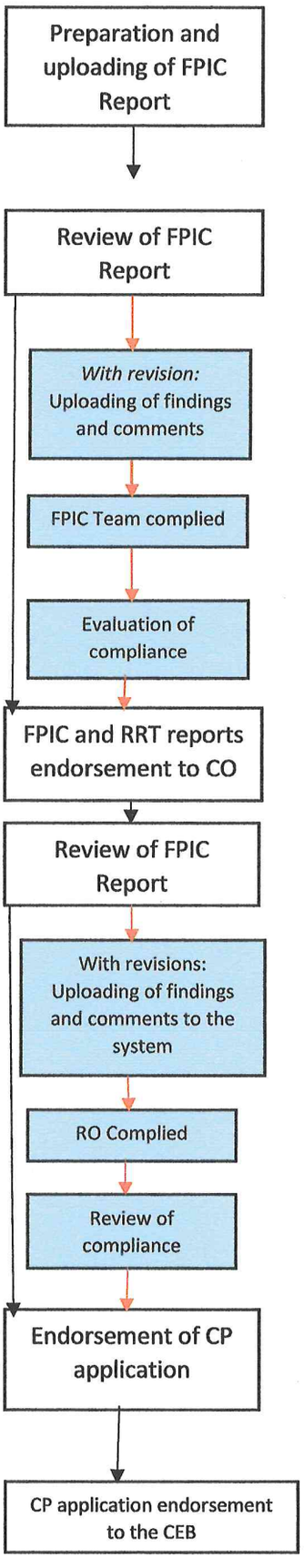
(An Act establishing the Energy Virtual One Stop Shop for the Purpose of Streamlining the Permitting Process of Power Generation, Transmission, and Distribution Projects)

PROCESS FLOW CHART	PERSON RESPONSIBLE	PROCESSING TIME (in calendar days)	DETAILS
Submission of the CP application thru the System	Proponent		Proponent submits CP application with complete supporting document to the EVOSS System.
Review of the CP application	Regional Office	3 calendar days	RO reviews the CP application to determine the completeness of the application and upload to the system the result of evaluation within **3 calendar days** upon receipt of the application in the system. The system starts the 105-calendar days processing time upon completion of the documentary requirements by the proponent.
START of the 105 days			
Check AD database and prepare report	Regional Office	1 calendar day	RO checks the database for the determination of the information over the applied area and prepare report within 1 calendar day.
If inside/ or may affect any AD			
If outside/ not affect any AD			
Prepare and approve CNO	Regional Office Ethnographic Commissioner	1 calendar day 1 calendar day	If applied area is found be located patently outside and will not affect any ancestral domain, Certificate of Non-Overlap is prepared, approved and uploaded to the system within **3 calendar days.**
Issue WO of the FBI Team	Regional Office	1 calendar day	RO issues Work Order of Field Based Investigation (FBI) Team if location of applied area is inside and/or may affect ancestral domain within 1 **calendar day.**
Conduct of Pre-FBI Conference	FBI Team	2 calendar days	FBI team conducts the Pre-FBI Conference, prepares and uploads the Activity Report and Work and

			Financial Plan (WFP) within **2 calendar days.**
Review of WFP	Regional Office	2 calendar days	RO evaluates the activity report and WFP within **2 calendar days.**
Finalization of the WFP	FBI Team	2 calendar days	If WFP has revisions, the FBI team acts on the revisions **within 2 calendar days** and upload to the system
Approval of the WFP and issuance of Order of Payment	Regional Office	2 calendar days	RO approves the WFP, issues order of payment and upload to the system **within 2 calendar days.**
Payment Confirmation and Uploading of Original Receipt	Regional Office	1 calendar day	Upon payment of the FBI fees by the proponent, the RO cashier confirms the payment and uploads the original receipt **within 1 calendar day**
Conduct of FBI	FBI Team	10 calendar days	FBI team conducts FBI, prepare and upload FBI report to the system within **10 calendar days.**
Review of FBI report	Regional Office	2 calendar days	RO reviews the FBI report and prepares evaluation report within **2 calendar days**
If inside/ or may affect any AD	Regional Office	1 calendar days	If applied area is outside AD and will not affect any ancestral domain, RO prepares Certificate of Non-Overlap and upload to the system within **1 calendar day.**
Prepare and approve CNO	Ethnographic Commissioner	1 calendar day	Ethnographic Commissioner signs and upload the CNO within **1 calendar day**
Issue Work Order of FPIC team	Regional Office	1 calendar day	If applied area is inside AD and will affect any ancestral domain, RO issues Work Order of the FPIC team and upload to the system within **1 calendar day.**
Conduct of pre-FPIC Conference	FPIC Team	3 calendar days	FPIC Team conducts the pre-FPIC conference, prepares activity report and WFP and upload to the system within **3 calendar days.**
Evaluation of Activity report and WFP	Regional Office	2 calendar days	RO evaluates the activity report and WFP within **2 calendar days.**



FPIC Team	1 calendar days	If WFP has revisions, the FPIC team acts on the revisions within **1 calendar day** and upload to the system
Regional Office	3 calendar days	RO approves the WFP, issues order of payment and upload to the system within **3 calendar days**.
Regional Office	1 calendar days	Upon payment of the FPIC fees by the proponent, the RO cashier confirms the payment and uploads the Original Receipt **within 1 calendar day**
FPIC Team	6 calendar days	FPIC team sets schedule of the Community Assemblies and Post/deliver notices/invitation letters within **6 calendar days** from the confirmation of the FPIC fees.
FPIC Team	10 calendar days	FPIC Team conducts the 1st and 2nd Community Assemblies within **10 calendar days.**
	(43 working days)	FPIC Team documents the Consensus Building, Decision Meeting and facilitates the MOA Negotiation, Preparation, Validation and Signing within 43 working days. (timeframe for these activities is not included in the 105 calendar days)
FPIC Team	1 calendar day	If ICCs/IPs did not give consent to the project, FPIC Team uploads Resolution of No Consent to the system.
		Proponent requests for reconsideration within 15 working days
FPIC Team	4 calendar days	FPIC Team serves copies to the concerned IPs within **4 calendar days.** The team documents the decision meeting and facilitates the succeeding FPIC activities.
FPIC Team	1 calendar day	FPIC Team uploads to the system signed MOA and Resolution of Consent **within 1 calendar** day after the MOA signing.



		The proponent upload the proof of the posting of the Security Bond within **15 working days** after the MOA signing.
FPIC Team	15 calendar days	FPIC Team prepares and uploads the FPIC Report **within 15 calendar days** after the MOA Signing.
Regional Review Team (RRT)	4 calendar days	RRT reviews the FPIC Report **within 4 calendar days.**
RRT	1 calendar day	If the RRT has findings and comments to the FPIC Report, RRT uploads the comments to the system within **1 calendar day**
FPIC Team	2 calendar days	FPIC Team complies the comments and upload report to the system within **2 calendar days.**
RRT	1 calendar day	RRT evaluates the compliance of the FPIC team within 1 **calendar day**
Regional Office	2 calendar days	RO endorses the FPIC and RRT reports to Central Office (CO) **within 2 calendar days**
ADO and LAO	4 calendar days	ADO and LAO reviews FPIC report and MOA respectively within **4 calendar days**
ADO	1 calendar days	If the ADO and LAO have findings and comments to the FPIC Report and MOA respectively, ADO uploads the comments to the system within **1 calendar day**
Regional Office	2 calendar days	RO complies the comments and upload compliance to the system within **2 calendar days**
ADO and LAO	1 calendar days	ADO and LAO reviews the compliance of RO within **1 calendar day**
ADO	1 calendar day	ADO endorses the CP application to concerned Ethnographic Commissioner within **1 calendar day.**
Ethnographic Commissioner	2 calendar day	Concerned Ethnographic Commissioner endorses to the CEB

			Secretariat for inclusion in the agenda within 2 **calendar days**.
CEB deliberation	Commission En Banc (CEB)	5 calendar days	CEB deliberates the CP application with **5 calendar days**.
	CEB Secretariat	1 calendar day	If CEB has comments or require additional documents, the CEB Secretariat upload the comments within **1 calendar day**
With revisions: Uploading of comments/required documents			Proponent complies to the comments of the CEB with **3 working days** and upload to the system
Review compliance		1 calendar day	ADO and LAO review compliance within **1 calendar day** and upload to the system
Preparation of CP and CEB Resolution	ADO	1 calendar day	ADO prepares the CP and CEB Resolution and transmit to the CEB Secretariat including the MOA within 1 **calendar day** upon approval of the CP by the CEB.
Review of CEB Resolution	LAO	1 calendar day	LAO review the CEB Resolution and endorses to CEB Secretariat within **1 calendar day**
Endorsement of CEB Resolution	CEB Secretariat	2 calendar days	CEB Secretariat endorses the CEB Resolution to the Commissioners for signature with **2 calendar days**.
Endorsement of CP, MOA and CEB Resolution for signature	CEB Secretariat	1 calendar day	CEB Secretariat endorses to the Chairperson the CP, MOA and CEB Resolution for signature within **1 calendar day**.
Uploading of the approved CP	ADO	1 calendar day	ADO uploads the approved CP to the system within **1 calendar day.**

SUMMARY

PROCESS	PROCESSING TIME
Issuance of CNO (without FBI)	**3 calendar days**
Issuance of CNO (with FBI)	**23 calendar days**
Issuance of CP	**105 Calendar days and 43 Working days (estimate)** *time allocated for proponent to comply is not included in the 43 working days.